REPORTABLE (14)

(1) MOREPRECISION MUZADZI (2) PARDON GAMBAKWE
v
(1) PRESIDENT EMMERSON D MNANGAGWA (2) SPEAKER OF PARLIAMENT (3) MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS (4) ZIMBABWE ELECTORAL COMMISSION (5) ZIMBABWE HUMAN RIGHTS COMMISSION (6) ATTORNEY GENERAL

CONSTITUTIONAL COURT OF ZIMBABWE
GARWE JCC, HLATSHWAYO JCC & PATEL JCC
HARARE: 09 FEBRUARY 2026 & 15 JULY 2026

The first applicant, in person

M.Chimombe, for the first, third and sixth respondents

S.Hoko, for the second respondent

T.M Kanengoni, for the fourth respondent

No appearance for the fifth respondent

GARWE JCC:

[1] This is an application for an order of leave for direct access to this Court in terms of s 167(5) of the Constitution of Zimbabwe, 2013 ("the Constitution") as read with r 26(2) of the Constitutional Court Rules, 2025 ("the Rules"). Should leave for direct access be granted, the applicants intend to institute substantive proceedings before this Court in terms of "Chapter 4, s 67 of the Constitution" (*sic*). The main issue for determination is whether the applicants have

established that it is in the interests of justice for this Court to grant them such leave for direct access.

[2] The applicants seek leave to approach this Court to challenge the constitutionality of a resolution adopted at the ZANU PF National People's Conference, which, they contend, seeks to extend the presidential term of office from five years to seven years. Having considered the application, the submissions by the parties and the applicable law, I am not persuaded that the applicants have established that it is in the interests of justice for direct access to be granted.

[3] Amongst other shortcomings, the application is defective for failure to comply with the rules of this Court. More importantly, however, the substance of the application is premised on a dispute that has not crystallised into a ripe and justiciable controversy. The principle of ripeness, which forms part of the overarching doctrine of constitutional avoidance, serves to safeguard the comity between the arms of the State by ensuring that courts do not intrude prematurely into matters that properly fall within the domain of the legislative or executive branches. It also guards against the unnecessary expenditure of judicial resources on abstract or contingent disputes, the resolution of which may depend upon events that may never occur. At the time of the hearing of the application, the alleged constitutional infringement remained speculative and contingent upon uncertain future legislative processes.

[4] In the circumstances, the application cannot succeed. It therefore falls to be dismissed. The reasons for that conclusion are set out below.

FACTUAL BACKGROUND

[5] The first applicant is Moreprecision Muzadzi and the second applicant is Pardon Gambakwe. Both are adult male citizens of this country. The first respondent is the President of the

Republic of Zimbabwe. The second respondent is the Speaker of Parliament. The third respondent is the Minister of Justice, Legal and Parliamentary Affairs. The fourth respondent is the Zimbabwe Electoral Commission. The fifth respondent is the Zimbabwe Human Rights Commission. The sixth respondent is the Attorney-General. The respondents are cited in light of the constitutional roles which, according to the applicants, they play in relation to the matters raised in this application.

[6] The factual basis of the application is a resolution which, according to the applicants, was adopted at the ZANU PF National People's Conference held in Mutare from 13 to 18 October 2025. The applicants aver that the resolution, which was an internal matter within the party as at the date of the hearing of this matter, directed the second and third respondents to ensure that the first respondent remains in office as President until 2030. They contended that this would have the effect of extending the first respondent's tenure beyond the period permitted by the Constitution, which, in their view, comes to an end in 2028. The applicants further allege that the resolution was publicly read out by the third respondent in the presence of the first and second respondents, neither of whom took any steps to disavow it.

[7] In the founding affidavit, the first applicant avers that citizens and political parties have a right to free, fair and regular elections every five years under s 67, read together with ss 95 and 155 of the Constitution. He further avers that the term of office of the President is five years and is coterminous with the life of Parliament.

[8] The first applicant further submitted that the President took an oath of office to protect and defend the Constitution and the rights of citizens. He contends that, by endorsing a resolution of his political party to remain in office beyond his constitutional limit, without a mandate

from the people of Zimbabwe and without a referendum, the first respondent acted in violation of that oath.

[9] It is on that basis that the applicants contend that the impugned resolution threatens the constitutional framework governing regular elections and the tenure of the office of the President. The first applicant further averred that it is in the interests of justice for direct access to be granted because, in his view, the matter concerns the protection of political rights guaranteed under s 67 of the Constitution, enjoys high prospects of success and admits of no other remedy.

[10] For his part, the second applicant deposed to a supporting affidavit in which he stated that he adopted the facts deposed to by the first applicant as if they were his own.

[11] Before setting out the parties' submissions, it is necessary to note that this application was heard on the same day as the application in the case *of Likazulu* v *Zimbabwe African Union Patriotic Front & Ors* CCZ 46/25, and the submissions made in the present matter followed upon the submissions made in that matter. The two matters substantially raised the same subject matter. It is necessary to highlight these facts because, during the hearing of the present matter, reference was made to the contrary position adopted by some of the respondents in CCZ 46/25.

THE FIRST APPLICANT'S SUBMISSIONS BEFORE THIS COURT

[12] In his submissions before this Court, the first applicant has contended that the resolution passed by the ZANU-PF Party to extend the term of office of the first respondent violated the political rights of the people of Zimbabwe. He submitted that citizens have the right to stand for public office and that the first respondent bore binding constitutional obligations, including the obligation to respect and uphold the rights protected by the Constitution.

It was his contention that the first respondent failed to uphold those obligations by not opposing the passage of the party resolution, which, in the applicant's view, sought to extend the first respondent's tenure and thereby infringed the political rights of the masses.

[13] The first applicant further relied on constitutional principles of good governance. He submitted that the electoral system must be based on universal suffrage and that executive authority derives from the people and must be exercised in accordance with the Constitution. He also argued, based on his understanding of the constitutional structure, that the first respondent cannot benefit from any constitutional amendment extending term limits. He maintained that the first respondent failed to uphold the Constitution by participating in political party processes in which decisions were made that were inconsistent with it.

[14] It is on the basis of the foregoing submissions that the first applicant sought an order for leave for direct access to this Court.

THE RESPONDENTS' SUBMISSIONS BEFORE THIS COURT

[15] In the papers filed of record before this Court, the first, third and fifth respondents opposed the application. Their opposition was premised, in the main, on the contention that the application for direct access was defective and did not comply with the requirements prescribed by the Constitution and the Rules of the Court.

[16] At the hearing, however, Mr *Chimombe*, counsel for the first, third and fifth respondents, initially indicated that the respondents opposed the application. He submitted that the application was fatally defective for want of compliance with r 26(3)(a) and (c) of the Rules and that, on that basis, opposition was warranted. Rule 26(4)(a) provides that the application

shall set out the grounds on which it is contended that it is in the interests of justice that an order for direct access be granted.

[17] The Court queried that position in light of the stance adopted by the same respondents in CCZ 46/25, where substantially similar relief had been sought and yet they had chosen to abide by the decision of the Court. Following exchanges between counsel and the Court on the approach contemplated by s 83(5) of the Constitution, particularly the need to minimise undue reliance on technical objections and to ensure that matters are determined on their merits, Mr *Chimombe* indicated that the first, third and fifth respondents would abide by the decision of the Court.

[18] The second respondent also opposed the application and contended that the matter was not ripe for adjudication. In his opposing affidavit, he averred that as no constitutional amendment Bill had been tabled, the application was therefore premised on hypothetical and speculative considerations, rendering it vexatious and devoid of prospects of success.

[19] At the hearing, Mr *Hoko*, counsel for the second respondent, addressed the Court principally on the question of ripeness. He submitted that the dispute was not ripe for determination because, at the time of the hearing of the matter, no Bill proposing constitutional amendments had been tabled before Parliament. In support of that contention, he relied on *Zimbabwe Women Lawyers Association* v *Minister of Justice & Anor* 2021 (2) ZLR 490 (CC), submitting that this Court does not generally entertain matters that are not ripe for adjudication.

[20] When invited by the Court to reconcile the second respondent's position in this matter with the stance adopted in CCZ 46/25, Mr *Hoko* explained that there was, in his view, a material

distinction between the present application and that in CCZ 46/25. He submitted that the intended substantive application in the present application sought relief directed at the Speaker and that he had instructions to oppose the application as a pre-emptive challenge to the relief sought against that office. In other words, the second respondent's position was that opposition was warranted because the relief sought in the intended substantive application was directed specifically at the office he occupies.

[21] For completeness, the relief sought by the applicants against the second respondent in the intended substantive application included an order requiring him to take steps in relation to the process for the removal of the President from office in terms of s 97 of the Constitution. It was that aspect of the relief, directed specifically at the office of the Speaker and invoking the constitutional process under that provision, that informed the second respondent's decision to oppose the application.

[22] Mr *Kanengoni*, counsel for the fourth respondent, indicated that the fourth respondent would abide by the decision of the Court.

ISSUE ARISING FOR DETERMINATION

[23] The single issue that arises for determination is whether it is in the interests of justice for leave for direct access to be granted in terms of s 167(5) of the Constitution as read with r 26 of the Constitutional Court Rules, 2025.

THE LAW

[24] The starting point in considering the law relating to direct access is the Constitution itself. Direct access to the Constitutional Court is a constitutionally recognised procedure. Section 167(5) of the Constitution provides as follows:

> "(5) Rules of the Constitutional Court must allow a person, when it is in the interests of justice and with or without leave of the Constitutional Court—
>
> (a) to bring a constitutional matter directly to the Constitutional Court;
> (b) to appeal directly to the Constitutional Court from any other court;
> (c) to appear as a friend of the court."

[25] This provision makes it clear that direct access is not automatic. It is a procedure that may be invoked only where the interests of justice justify such intervention by the Court.

[26] The procedural framework regulating applications for direct access is also set out in the Constitutional Court Rules. In particular, r 26(3) governs the manner in which such applications must be presented to the Court. It provides as follows:

> "(3) An application in terms of subrule (2) shall be filed with the Registrar and served on all parties with a direct or substantial interest in the relief claimed and shall set out—
> (c) the grounds on which it is contended that it is in the interests of justice that an order for direct access be granted; and
> (d) the nature of the relief sought and the grounds upon which such relief is based; and
> (e) whether the matter can be dealt with by the Court without the hearing of oral evidence or, if it cannot, how such evidence should be adduced and any conflict of facts resolved."

[27] The above rule, therefore, places an obligation on an applicant seeking direct access to place before the Court sufficient material demonstrating why the matter should be entertained by the Court as a court of first instance. The central consideration in determining whether direct access should be granted is whether it would be in the interests of justice to do so.

[28] The question whether it is in the interests of justice to grant leave for direct access, within the contemplation of s 167(5) of the Constitution, is determined by reference to a number of relevant factors. Some of those factors are set out in r 26(9) of the Rules, 2025, which provides as follows:

> "(9) In determining whether or not it is in the interests of justice for a matter to be brought directly to the Court, the Court or Judge may, in addition to any other relevant consideration, take the following into account—
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> (f) the prospects of success if direct access is granted;
> (g) whether the applicant has any other remedy available to him or her; and
> (h) whether there are disputes of fact in the matter."

[29] The position was further explained in the South African case of *Mazibuko* v *Sisulu* 2013 (6) SA 249 (CC) at para 34, where MOSENEKE DCJ stated that:

> "The first question to resolve is whether direct access should be granted. It would be granted only if it is in the interests of justice to do so. This Court must be persuaded that there are special circumstances that warrant bypassing other courts and thereby hearing the dispute as a court of first and last instance."

[30] In interpreting s 167(5) of the Constitution, and in particular the requirement that direct access be granted only where the interests of justice so demand, this Court has consistently emphasised that the standard is an objective threshold which an applicant must properly satisfy. In *Zimbabwe Development Party & Anor* v *The President & Ors* 2018 (1) ZLR 485 (CC) at 491B and 492F, this Court observed as follows:

> "Absent the grounds on which it is claimed that it is in the interests of justice that direct access be granted, the court or judge has no basis on which to decide whether or not to grant direct access. A finding has to be made by the court or judge of the existence of the interests of justice requiring that a decision that direct access be granted be made. Direct access to the court in matters over which other courts have jurisdiction is a discretionary procedure, which is granted only in exceptional cases ... Currie and de Waal *The Bill of Rights Handbook 6 ed* (2013) at pp. 127-128 have the following to say on the subject:
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> 'Direct access means that a matter is heard by the Constitutional Court at first instance … The Rules provide for direct access to the Constitutional Court in matters over which concurrent jurisdiction is exercised, where the matter is of sufficient public importance or urgency that direct access will be in the interests of justice. Direct access is an extraordinary procedure that has been granted by the Constitutional Court only in a handful of cases.'"

[31] The proper approach to an application for direct access, therefore, requires that all relevant considerations be placed before the Court. The Court must consider all the relevant factors in deciding whether the interests of justice would be served by granting direct access. The

weight to be attached to each factor depends on the circumstances of the particular case and the broader interests of justice in a society governed by the rule of law.

[32] Against the above understanding, the Court has time and again stressed that the interests of justice, as they are shaped by various relevant considerations, are the paramount consideration in an application for leave for direct access. One such factor, frequently relied upon in determining the interests of justice, is the question of prospects of success. Rule 26(9)(a) of the Rules is pertinent in this regard. Courts have consistently held that where an applicant fails to demonstrate a *prima facie* case, it would not be in the interests of justice for the Court to entertain the matter.

WHETHER IT IS IN THE INTERESTS OF JUSTICE TO GRANT DIRECT ACCESS

[33] The principal issue for determination in the instant matter is whether it is in the interests of justice that the applicants be granted leave to approach this Court directly in terms of s 167(5) of the Constitution. In considering that question, the Court is required to have regard not only to the substantive complaint sought to be advanced, but also to whether the application is properly constituted for determination. This is so because a matter that is not properly pleaded, and which does not disclose with clarity the basis upon which direct access is sought, cannot readily be said to satisfy the interests of justice threshold. It has repeatedly been stressed that clarity in constitutional pleading is important to enable the other party and the Court to appreciate the exact premise upon which a complaint is predicated. In the present case, there is no doubt that the application is afflicted by considerable inexactitude. The founding affidavit, in particular, refers to a number of constitutional provisions, but no attempt has been made to identify with some degree of clarity the basis upon which it is said that the interests

of justice requires that the matter be brought directly to this Court as a court of first instance. Nor does it disclose the exceptional circumstances justifying the need to bypass the High Court, which has concurrent jurisdiction. This is an aspect that I will revert to shortly in this judgment.

[34] The result is that the application is not properly constituted for adjudication. In an application of this nature, the requirement that the interests of justice be established is not met by a mere recital of constitutional provisions or by the assertion of a constitutional grievance. What is required is a properly and clearly pleaded case showing why the matter should be heard directly by this Court. See *Zimbabwe Development Party & Anor* v *The President & Ors* 2018 (1) ZLR 485 (CC) at 491B and 492F; *Sadziwani* v *Nat Pack (Pvt) Ltd & Ors* CCZ-15-19; *Liberal Democrats & Ors* v *The President of the Republic of Zimbabwe, E.D. Mnangagwa N.O. & Ors* CCZ/07/18.

[35] What appears in the affidavit is, in substance, a recital of constitutional provisions coupled with apprehension arising from a political resolution. Such pleading falls woefully short of the standard expected in an application of this nature. Pleadings exist to define the issues for determination and to inform both the court and the opposing party of the case to be met. See *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* 2018 (1) ZLR 449 (S) at 455G and 457G.

[36] The application, therefore, suffers from a fundamental defect. The applicants have not properly articulated the legal and factual basis upon which they seek to invoke the jurisdiction of this Court. They have also not shown, in their founding papers, why the ordinary hierarchy of courts should be bypassed. One of the primary considerations why direct access is ordinarily regarded as undesirable is because it deprives the Court of the benefits and assistance it desires from the views of courts subordinate to it. Moreover, if another remedy or procedure is readily

available and capable of providing relief, it would generally not be in the interests of justice for that procedure to be circumvented.

[37] The defects referred to above are not cured by the importance the applicants attribute to the matter. A constitutional issue does not become justiciable merely because constitutional provisions are invoked. Nor does a matter become a proper constitutional cause simply because it is framed in constitutional language. In the present case, the procedural deficiency is fatal as the applicants have not placed before the Court the material necessary to enable it to determine whether the interests of justice require the grant of direct access. This Court has not been told why it is in the interests of justice that the applicants are heard in this Court and not in the High Court which has concurrent jurisdiction. They have not set out a properly pleaded case disclosing the legal basis of the relief sought. Without such material, the application lacks the procedural foundation necessary for adjudication.

[38] For completeness, it must be observed that the same defects I have referred to also afflict the substantive application sought to be filed in the event direct access is granted. The applicants seek, in the intended application wide declaratory relief against several public office-holders. For example, they have cited the Zimbabwe Human Rights Commission and the Zimbabwe Electoral Commission. Yet the material facts upon which that relief is founded have not been properly pleaded.

WHETHER THE MATTER IS RIPE

[39] Even if the above defects were to be condoned, it is apparent that the dispute has not concretised into a ripe controversy that warrants adjudication by this Court. Ripeness is one of the procedural preconditions that a litigant must satisfy before the Court may properly proceed to determine the merits. The principle of ripeness requires that a constitutional issue

must have crystallised into a concrete and earnest dispute before judicial intervention is warranted. It serves important institutional and constitutional purposes. Courts do not ordinarily determine abstract, hypothetical or academic questions. Judicial authority is exercised in relation to concrete disputes where the facts giving rise to the alleged infringement have matured into an actual controversy. As has been previously explained, the principle prevents courts from intruding prematurely into matters that properly fall within the province of the legislative or executive branches before those processes have run their course.

[40] This Court has repeatedly affirmed these principles. In *Zimbabwe Women Lawyers Association* v *Minister of Justice & Ors* 2021 (2) ZLR 490 (CC) at p 496D-E, the Court declined to entertain a constitutional challenge directed at a Bill whose legislative fate remained uncertain. The Court stated at para 24 of the judgment:

> "The conclusion is inescapable that the issue raised in this application is not ready for adjudication by this Court. Until the fate of the Bill is known, it would not only be inappropriate and unwise but also premature for this Court to make a determination on the constitutionality of the definition of marriage in s 2 of the Matrimonial Causes Act. I find therefore that it is not in the interest of justice that leave for direct access be granted to the applicant."

[41] It is, therefore, clear that the doctrine of constitutional avoidance, of which the principle of ripeness forms part, operates to preclude the premature determination of constitutional disputes. That doctrine is not new in this jurisdiction. In addition to the decision *in Zimbabwe Women Lawyers Association, supra,* this Court stated in *Chawira & Ors* v *Minister of Justice, Legal & Parliamentary Affairs & Ors* 2017 (1) ZLR 117 (CC) at 123G, that:

> "The doctrine of ripeness and constitutional avoidance gives credence to the concept that the Constitution does not operate in a vacuum or isolation. It has to be interpreted and applied in conjunction with applicable subsidiary legislation, together with other available legal remedies. Where there are alternative remedies, the preferred route is to apply such remedies before resorting to the Constitution."

And more recently in *Sibanda* v *The Parliament of Zimbabwe* CCZ 9/26, at p 20 of the judgment, that the principle:

> "…occupies a settled and important place in our constitutional jurisprudence and forms part of the broader doctrine of constitutional avoidance. The underlying rationale of the doctrine is that the business of a court is generally retrospective. It deals with disputes that have crystallised and not with prospective, contingent or hypothetical events. A court will not entertain a matter that is premature in the sense that rights or interests have not yet been infringed or threatened. The doctrine prevents the hypothetical engagement of the courts in disputes whose exact parameters are not yet defined. It thereby protects other organs of State from judicial interference until their conduct has assumed its final form and produced concrete consequences."

[42] *In casu*, the applicants rely upon a resolution allegedly adopted at a political party conference held between 13 and 18 October 2025. According to the applicants, the resolution reflects an intention to extend the tenure of the first respondent beyond the constitutionally prescribed term of office. However, it is common cause that, as at the date of the hearing of this matter, no Constitutional Amendment Bill had been introduced in Parliament. The alleged extension of tenure therefore remains entirely contingent upon further processes being carried out in terms of the Constitution, whose occurrence, content and outcome are unknown at this stage. In these circumstances, the alleged constitutional infringement has not yet crystallised into a concrete dispute capable of adjudication. What the applicants invite this Court to determine is the constitutionality of a possible future legislative process, contained in a political party resolution, which may or may not occur. Such a dispute remains eminently speculative and hypothetical. It is not justiciable.

[43] The position is now settled in this jurisdiction and many others, including South Africa, that courts are generally reluctant to pronounce themselves upon contingent future events or anticipated constitutional violations that depend upon uncertain legislative developments. To do so would draw the Judiciary into abstract political disagreements and risk trenching upon

the constitutional domain of Parliament before Parliament itself has even acted. Any premature judicial intervention in such circumstances would be inimical to the comity that exists between the judicial arm and other organs of Government, namely the Executive and the Legislature, as the Court would adjudicate upon speculative constitutional consequences in the absence of a concrete legislative measure. Until a concrete legislative measure has been enacted or formally introduced for consideration, there exists no live constitutional controversy warranting judicial intervention.

DISPOSITION

[44] In the result, the application cannot succeed. The applicants have failed to demonstrate that it is in the interests of justice for this Court to grant leave for direct access. The founding affidavit does not disclose with the necessary clarity the factual and legal basis upon which such leave is sought. The application is, for that reason, fundamentally defective. The same defect extends to the substantive application, which regurgitates verbatim the averments made in the application for direct access.

[45] In any event, even if the defects were to be condoned or even overlooked, the point remains that the dispute has not yet crystallised into a ripe and justiciable controversy capable of adjudication by this Court. The application cannot therefore succeed.

[46] On the question of costs, the settled principle in constitutional litigation is that costs are not ordinarily awarded unless there are exceptional circumstances justifying a departure from that position. No such circumstances arise in this matter. A no costs order is therefore appropriate.

[47] In the result, the Court makes the following order:

"The application be and is hereby dismissed with no order as to costs."

HLATSHWAYO JCC: I agree

PATEL JCC: I agree

Civil Division of the Attorney-General's Office, legal practitioners for the 1st, 3rd and 6th respondents'

Chihambakwe & Partners, 2nd respondent`s legal practitioners

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